

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)

Criminal Appeal No. 7030 of 2023

Saiful Islam and another.

...Convict-Appellants.

-VERSUS-

The State.

... Respondent.

Present
Mr. Justice Mamnoon Rahman

Mr. Mohammad Siddique Ullah Miah, Adv.
... For the appellants.
Mr. Md. Taifoor Kabir, DAG with
Mr. Md. Lokman Hossain, AAG
Mr. Md. Hatem Ali, AAG
....For the State.

Heard 12.10.2023

And

Judgment on: The 15th October, 2023

This appeal is directed against the Judgment and order of conviction and sentence dated 20.07.2023 passed by the learned Additional Sessions Judge, 1st Court, Mymensingh in Sessions Case No. 450 of 2008 arising out of Fulbaria Police Station Case No. 10 dated 17.12.2007 corresponding to G.R. No. 241 of 2007 convicting the convict-appellant No. 1 under section 326 of the Penal Code, 1860 and sentencing him to suffer rigorous imprisonment for a period of 05 (five) years and to pay a fine of Tk. 3,000/- (three thousand) in default to suffer simple imprisonment for a period of 2(two) months more and convicting the convict-appellant No. 2 under section 324 of the Penal Code, 1860 and sentencing him to suffer rigorous imprisonment for a period of 02 (two) years and to pay a fine of Tk. 1,000/- (one thousand)

in default to suffer simple imprisonment for a period of 01 (one) month more.

The prosecution case, in short, is that, P.W. 1 as informant lodged First Information Report (FIR) on 17.12.2007 in the Fulbaria Police Station under District Mymensingh against six accused persons including the appellant under section 143, 448, 385, 323, 324, 326, 307, 380, 379 and 114 of the Penal Code alleging *inter-alia* that he owned a shop in Fulbaria Bazar wherein he went to the shop on 11.12.2007 for repair as his tenant's land. At that time at about 4.00 in the evening the accused persons came and demanded Tk. 20,000/- from the informant. On 13.12.2007 when the informant went to the shop along with other persons to repair the shop the accused person along with other 20/25 persons entered into the shop and assaulted him with different weapons. The accused appellant namely Saiful gave blow in his head with a sharp cutting dao resulting which he suffering serious injury. The accused Chanu Mia punched the elder brother of the informant and snatching away Tk. 25,000/- from his pocket. Thereafter, the other accused persons gave blow to the informant and his younger brother and looted valuable goods total valued at Tk. 40,000/-. Thereafter, the witnesses took into the informant and victim at Fulbaria Hospital for treatment. Hence, the case.

The police after investigation submitted charge sheet against all the accused persons including the appellant. As the case was ready for

trial the same was transmitted to the court of Sessions Judge, Mymensingh and the same was heard and disposed of by Additional Sessions Judge, 1st Court, Mymensingh. The trial court after receiving the case record proceeded with the trial wherein the prosecution adduced as many as seven witnesses and the defence adduced none. The trial court after hearing the parties and considering the facts and circumstances, examined the accused persons under section 342 of the Code of Criminal Procedure and thereafter by the impugned judgment and order convicted the appellant and sentencing him to suffer rigorous imprisonment for five years and also pay a fine of Tk. 3000/- in default to suffer simple imprisonment for a period of 2(two) months more and also by the said judgment and order the trial court acquitted all the accused persons. Being aggrieved, the appellant moved before this court by way of appeal.

Mr. Mohammad Siddique Ullah Miah, the learned counsel appearing on behalf of the appellant submits that the court below without applying its judicial mind and without considering the facts and circumstances, most illegally and in an arbitrary manner passed the impugned judgment and order of conviction and sentence which requires interference by this court. He submits that though the occurrence took place on 11.12.2007 but the case was filed on 17.12.2007 without giving any specific explanation for such delay. He further submits that in the present case in hand the injury as described

in the First Information Report is not corroborated with the medical report as much as the prosecution also miserably failed to prove the nature of injury which may endanger the life of the victim and as per the provisions of law conviction under sections 320, 326 or 325 of the Penal Code has to be sustained only if the prosecution proved that such injury endangered the life of the victim. In support of his contention he relied the decision as reported in 51 DLR(1999)457. The learned counsel also submits that in the present case in hand the prosecution has failed to examine the Investigating Officer and also there is no explanation and in view of the decision as reported in 9 DLR(1957)595 this is a serious illegality. He submits that in the case in hand all the witnesses are highly interested witnesses and as such the impugned judgment and order of conviction and sentence is liable to be set aside for ends of justice.

Mr. Mohammad Taifoor Kabir, the learned Deputy Attorney General appearing on behalf of the respondent-state vehemently opposes the appeal. He submits that the court below on proper appreciation of the facts and circumstances and material on record has rightly passed the impugned judgment and order of conviction and sentence which requires no interference by this court.

I have heard the learned Advocate for the appellant as well as the learned Deputy Attorney General for the state. I have perused the

impugned judgment and order of conviction and sentence passed by the court below, Memorandum of appeal as well as LC Records.

On perusal of the same, it transpires that the appellant along with 5(five) accused persons stood charge for the offences as stated in the First Information Report. It appears that after filing of the case the police started investigation and submitted against all the accused persons as mentioned in the First Information Report. During trial the prosecution adduced as many as seven witnesses. P.W. 1 who is the informant in his deposition stated that he went to his shop for repairing the same as his tenant left on 11.12.2007 wherein the appellant and others came to the place of occurrence and demanded Tk. 20,000/- as he refused to pay the same on the next date they formed an unlawful assembly and attacked him and also injured him and others with different weapons. As per the deposition the appellant gave up blow in his head with sharp cutting weapon causing serious injury. He also stated that they snatching away Tk. 25,000/- as much as other materials namely teen, cement etc. However, P.W. 1 in his cross-examination he admitted that there are counter cases relates to the shop in question in between the parties. P.W. 2 who in his deposition supported the deposition as made by the P.W. 1. However, he is the nephew of the informant P.W. 1. In his cross-examination however, he stated that the distance of the house is one and half kilometer from the place of occurrence. He is also doing business in the same premises. P.W. 3 is

also the full brother and stated that the accused persons indiscriminately assaulted the victim. However, he stated that at the time of occurrence the workers are absent. P.W. 4 in his deposition stated that after hearing hue and cry and sees the assembly of the peoples he went there. P.W. 5 is a formal witness. P.W. 6 is also a relation of P.W. 1 and in his cross-examination he stated that he is the relation of P.W. 1 and P.W. 7 who is the doctor and in his deposition he proved the medical report.

So, on critical analysis of the aforesaid evidence and materials on record, it transpires that all the witnesses are highly interested witnesses. They are the relations of the P.W. 1 and most of them failed to prove that they are the eye witnesses of the occurrence in question. It appears from the deposition of the P.W. 1 and others that there were many independent persons were present but none of them were examined in any manner. It also appears from the cross-examination of P.W. 2 that there is previous enmity and counter case is also pending in between the parties.

It also appears that while deciding the case in hand though there is a specific allegation brought by the informant and other accused persons for causing injury into the body of the informant and others but all of them were acquitted except the appellant. The main allegation against the appellant is that he gave the blow in the head but in the present case in hand the prosecution failed to prove that the injury

caused to the victim endangered the life in any manner. It also appears that there is no explanation given by the doctor in his deposition or in the medical report regarding the nature of the injury. The decisions as reported in 51 DLR457 lend support to the above contention.

On further perusal of the evidence, it appears that there is a doubt regarding the place, time and manner of occurrence though it has been alleged that the accused persons including the appellant took away Tk. 25,000/- as much as other articles but there was no recovery of the same in any manner. In the present in hand, it further appears that the occurrence took place on 11.12.2007 and the case was lodged on 17.12.2007 but no specific explanation was given by the informant regarding the delay in the filing the case. Such delay gives right to suspicion of the nature of the First Information Report as well as the implication of the accused person in the offence as alleged. On meticulous perusal of the medical report, it does not show that the victim was admitted in the hospital or the doctor gave him continuous treatment for five days for which there was a delay in filing of the First Information Report. So, on given facts and circumstances and materials on record, it appears that there is a doubt in the prosecution case regarding the place, time and manner of occurrence as well as the nature of injury which warranted conviction under section 326 of the Penal Code. Hence, I find substance in the appeal.

Accordingly, the instant appeal is allowed. The impugned judgment and order of conviction and sentence passed by the court below is hereby set aside. The appellant is discharged from the bail bond and the appellant is acquitted from the charge leveled against him.

Send down the L.C. Records (if any) to the concerned court below with a copy of the judgment at once.

(Mamnoon Rahman,J:)

Emdad.B.O.